

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cordell Hackshaw	Team: Team # 2	CCRB Case #: 201106683	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 05/16/2011 1:37 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 77	18 Mo. SOL 11/16/2012	EO SOL 11/16/2012	
Date/Time CV Reported Wed, 05/18/2011 2:25 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Tue, 05/24/2011 10:29 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alex Viera	14168	945080	077 PCT
2. POM Mario Maisonet	10851	935233	077 PCT
3. An officer			

Officer(s)	Allegation	Investigator Recommendation
A.POM Alex Viera	Discourtesy: At § 87(2)(b) in Brooklyn, PO Alex Viera spoke obscenely and/or rudely to § 87(2)(b)	
B.POM Mario Maisonet	Discourtesy: At § 87(2)(b) in Brooklyn, PO Mario Maisonet spoke obscenely and/or rudely to § 87(2)(b)	
C.POM Mario Maisonet	Force: At § 87(2)(b) in Brooklyn, PO Mario Maisonet used physical force against § 87(2)(b)	
D.POM Alex Viera	Force: At § 87(2)(b) in Brooklyn, PO Alex Viera struck § 87(2)(b) with an asp.	
E.POM Mario Maisonet	Force: En route to the 77th Precinct stationhouse, PO Mario Maisonet used a chokehold against § 87(2)(b)	
F.POM Mario Maisonet	Off. Language: At § 87(2)(b) in Brooklyn, PO Mario Maisonet made remarks to § 87(2)(b) based upon race.	
G.POM Alex Viera	Off. Language: At § 87(2)(b) in Brooklyn, PO Alex Viera made remarks to § 87(2)(b) based upon race.	
H. An officer	Discourtesy: At § 87(2)(b) in Brooklyn, an officer spoke obscenely and/or rudely to § 87(2)(b)	

Case Summary

§ 87(2)(b) filed this complaint via email with the Internal Affairs Bureau (IAB) on May 18, 2011. The complaint, log #11-22592, was forwarded to the Civilian Complaint Review Board (CCRB) on May 24, 2011. On May 16, 2011, at approximately 1:37 p.m., in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, § 87(2)(b) was removing the debris around his car when he was approached by two officers who he identified by name as PO Alex Viera and PO Mario Maisonet from the 77th Precinct. § 87(2)(b)'s interaction with the officers led to him being summonsed § 87(2)(a) 160.50 by PO Viera. While PO Viera was issuing the summons to § 87(2)(b) he allegedly referred to § 87(2)(b) as an "unintelligent animal" (**Allegation A**). PO Maisonet interjected and told § 87(2)(b) to "shut the fuck up" (**Allegation B**). An argument ensued between § 87(2)(b) and PO Maisonet who grabbed § 87(2)(b) by the shirt and pushed him to the ground (**Allegation C**). § 87(2)(b) broke free and ran from the scene. The officers pursued § 87(2)(b) and subsequently caught up to him and placed him in handcuffs. PO Viera then struck § 87(2)(b) in the head with his asp (**Allegation D**). In his initial statement, § 87(2)(b) stated that both officers struck him in the head with their batons but when the CCRB spoke to him on May 31, 2011, he identified only PO Viera as the subject officer in this allegation. PO Viera and PO Maisonet referred to him several times at this point of the incident as a "nigga, monkey and an animal" (**Allegations E and F**). When the CCRB spoke to § 87(2)(b) on May 31, 2011, he further alleged that en route to the 77th Precinct stationhouse, § 87(2)(b) stated that PO Maisonet was choking him in the back of the patrol car (**Allegation G**). § 87(2)(b) also stated that an unidentified officer went back to the initial incident location and interacted with his wife, § 87(2)(b). § 87(2)(b) asked the officer why he was inside her car to which he replied, "Because you are being an asshole" (**Allegation H**). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

The CCRB sent an email to § 87(2)(b) on May 31, 2011 as well as sent a please call letter. § 87(2)(b) contacted the CCRB on the same day. § 87(2)(b) identified his wife, § 87(2)(b) as a victim at this time. § 87(2)(b) confirmed with § 87(2)(b) and they agreed to come into the CCRB on June 3, 2011. However, neither § 87(2)(b) nor § 87(2)(b) came into the CCRB on the agreed upon date. They did not call the CCRB to cancel or reschedule. A missed appointment letter was sent to them both on June 3, 2011. The CCRB contacted § 87(2)(b) on June 6, 2011, and he scheduled a second appointment for himself and § 87(2)(b) for June 9, 2011. § 87(2)(b) and § 87(2)(b) did not come into the CCRB for their second appointment and again neither § 87(2)(b) nor § 87(2)(b) called to cancel or reschedule. A check of the New York City Department of Correction database showed no record of either § 87(2)(b) or § 87(2)(b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

Team: 2

Investigator: _____ Cordell Hackshaw _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date